

Table of Contents

SECTION I – THE SCHEDULE.....	2
1. BPA Number <i>[to be identified upon award]</i>	2
2. Period and Place of Performance	2
3. Terms and Conditions	2
4. Ordering Mechanism.....	3
5. Invoices.....	4
6. BPA Deliverables	4
7. Statement of Work (SOW).....	5
7.1 Background	5
7.2 Objective	5
7.3 Scope	6
7.4 Non-Personal Services	7
7.5 Tasks.....	7
7.6 Key Personnel.....	9
7.7 Event-Specific Ordering Modules.....	11
7.7 BPA Call Deliverables	12
7.8 Government-Furnished Information and Approvals.....	15
7.9 Security, Safety, Legal, and Regulatory Compliance	15
7.10 Funding and Order Authorization	15
7.11 Performance Standards.....	15
7.12 Quality Assurance	16
7.13 Exclusions / Government-Reserved Functions	16
SECTION II - CLAUSES FOR BLANKET PURCHASE AGREEMENTS	17

SECTION I – THE SCHEDULE

1. BPA Number *[to be identified upon award]*

Under this BPA, the Contractor shall furnish integrated public event and outreach support services in accordance with the Statement of Work during the specified ordering (calling) period established herein, with each funded BPA call defining the specific activities, deliverables, schedule, and firm-fixed-price amounts to be performed.

2. Period and Place of Performance

Period of Performance: This BPA establishes a 12-month ordering period approximately from June 2026 through May 2027 during which the Contracting Officer place BPA calls for services. Notwithstanding the ordering period, the Government anticipates that requirements under BPA calls will primarily occur between June 2026 and December 2026.

Place of Performance: Performance will occur primarily in Seoul and other locations in the Republic of Korea identified in funded BPA calls, with some planning, design, or digital support potentially performed off-site as authorized.

3. Terms and Conditions

- The Embassy is **not** obligated to purchase any definite amount under this agreement.
- No single purchase will exceed USD 5,000,000 or the equivalent in local currency.
- **Excise Tax – James Zadroga 9/11 Victims Health and Compensation Act of 2010 Notice**
Unless a waiver or exception applies, payments subsequent to this procurement are subject to an excise tax of 2% pursuant to 26 U.S.C. 5000C. The Contractor shall complete attached form W-14 in order to apply for an exemption of the Excise Tax, if applicable.

- **INSURANCE**

Defense Base Act (DBA) Insurance: South Korea is included on the U.S. Department of Labor's Defense Base Act waiver list. DBA insurance is required only for employees performing work on this BPA who are:

1. Citizens or residents of the United States of America, OR
2. Hired in the United States of America

Contractors must obtain and maintain Defense Base Act insurance coverage for any such employees throughout the BPA Ordering Period(s). Evidence of DBA insurance coverage must be provided to the Contracting Officer prior to the commencement of work by any covered employee.

The clause at FAR 52.228-4, Workers' Compensation and War-Hazard Insurance Overseas, remains fully applicable to this acquisition. Contractors must comply with all requirements therein and maintain appropriate insurance coverage for all employees as specified above.

Proof of DBA coverage shall be submitted within 15 days after award. Insurance must be obtained from a DOL-authorized broker. A list of DOL approved carriers may be found at <http://www.dol.gov/owcp/dlhwc/lscarrier.htm>. DBA premiums will be evaluated as part of the firm-fixed price and reimbursed at actual cost, not to exceed the amount proposed for DBA, upon submission of acceptable proof of payment.

Insurance (Other than DBA Insurance): The Contractor, at own expense, shall provide and maintain during the entire period of performance of work detailed in the BPA and as ordered under a funded BPA Call, whatever insurance is legally necessary under the laws and statutes of the applicable country. The Contractor agrees that the Government shall not be responsible for personal injuries or for damages to any property of the Contractor, its officers, agents, servants, and employees, or any other person, arising from and incident to the Contractor's performance of the work detailed in individual BPA Calls. The Contractor shall hold harmless and indemnify the Government from all claims arising therefrom, except in the instance of gross negligence on the part of the Government. The Contractor shall submit evidence of such insurance to the COR within 15 calendar days of a funded BPA Call.

4. Ordering Mechanism

Services under this BPA shall be requested through individual calls placed by the RPSO Contracting Officer or authorized representative(s). Each call shall:

- Be placed by an individual appearing on the following Authorized Purchaser List: **Only an RPSO Contracting Officer may place a BPA Call order.**
- Reference the BPA number

- Describe the services with appropriate CLIN
- Not exceed the individual call limitation of USD 5,000,000 or the equivalent in local currency

5. Invoices

The BPA holder shall submit invoices to the Contracting Officer Representative. Advance Payment shall not be authorized under this agreement. Payment shall be made in the currency the contractor specified in the pricing table.

Pursuant to 52.212-4(g), the Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the BPA call to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

A proper invoice must include the following information:

- Vendor's name and bank account information for payments by wire transfers
- Invoice Date
- BPA Number and BPA Call Number
- CLIN of the service/s rendered as per pricing schedule
- Contact name (where practicable), title and telephone number
- Other substantiating documentation or information required by the BPA call

6. BPA Deliverables

All reports and other deliverables required under this agreement shall be delivered as follows:

Description		Submission Date	Deliver To
Reference			
Schedule & Clauses, Section 3	Defense Base Act (DBA)	Within 15 days upon award	Contracting Office
Schedule & Clauses, Section 5	Invoice	Monthly	COR / Designated

			Billing Office
Combined Synopsis/Solicitation, Section VI	Recruitment and/or Housing Plans, if applicable (DOSAM 652.222-800 Recruitment of Third Country Nationals)	With proposal submission/as changes occur	CO/COR
Combined Synopsis/Solicitation, Section IX	Trafficking in Persons (TIP) Compliance Plan (FAR 52.222-50)	Within 15 calendar days after contract award	CO/COR

7. Statement of Work (SOW)

Integrated Planning and Execution of U.S. 250th Anniversary Commemorative Events and Related Outreach Activities, U.S. Embassy Seoul

7.1 Background

The U.S. Embassy in Seoul requires contractor support to plan, coordinate, produce, execute, and assess a portfolio of commemorative events and related outreach activities in the Republic of Korea in honor of the 250th anniversary of the United States, known as the Freedom 250 initiative. These activities are intended to advance U.S. national interests through high-visibility, high-quality public engagements that celebrate American history, culture, innovation, partnership, and shared values.

The portfolio may include live events, cultural and artistic activations, public exhibitions, media and digital campaigns, and related promotional activities. The U.S. Government intends to award one contract to a prime contractor capable of integrating all necessary services and managing subcontractors and specialized vendors as required.

7.2 Objective

The objective of this Blanket Purchase Agreement (BPA) is to obtain integrated, end-to-end contractor support for the planning and execution of approximately 10 to 15 public events and outreach activities associated with the Freedom 250 initiative to commemorate the 250th anniversary of the United States.

The contractor shall provide all management, supervision, labor, coordination, subcontractor oversight, scheduling, production support, reporting, and other non-personal services such as concert venue, permits, promotion, and artist fees necessary to execute funded BPA calls issued under the contract. Activities may include, but are not limited to, large-scale, multi-day live American music concerts, fireworks display support, art exhibitions, promotional pop-up events, sporting events, digital and social media campaigns, billboard or outdoor media placements, festivals and gala events, fashion shows, and other related public engagement activations.

The contractor shall be capable of supporting a diverse event portfolio under one prime-contractor structure while maintaining quality, schedule control, and risk management across multiple concurrent requirements.

7.3 Scope

The contractor shall furnish integrated event-management and outreach support services for all funded BPA calls issued under this BPA. Services may include strategic planning, concept development, venue and technical coordination, production management, creative support, fabrication support, digital content and promotion support, media placement support, event staffing, audience engagement support, logistics, venue rental, vendor and subcontractor management (including for artists), risk management support, closeout activities, and post-event assessment.

The contractor shall provide a single management structure capable of executing multiple concurrent or sequential activities under one overarching program. The contractor shall ensure that performance remains within the approved scope, schedule, and budget established by the U.S. Government.

The required support structure shall include preexisting corporate experience as a prime contractor for large-scale public-facing events and a demonstrable capacity to integrate event production, promotion, media, digital amplification, venue coordination, and local vendor management within the Republic of Korea.

The contractor shall provide an established and operational support structure in the Republic of Korea sufficient to perform the full range of contemplated services without reliance on speculative or undeveloped post-award arrangements.

7.4 Non-Personal Services

This is a non-personal services contract. Contractor personnel shall not be supervised by U.S. Government personnel on an employer-employee basis. U.S. Government direction shall be provided only by the Contracting Officer, or by the Contracting Officer Representative (COR) within the limits of the COR's written designation.

The contractor shall be responsible for management, supervision, and control of its personnel and subcontractors. Only the Contracting Officer has authority to modify the contract, change scope, obligate funds, or otherwise bind the U.S. Government.

7.5 Tasks

7.5.1 Program Management and Master Planning

The contractor shall:

- develop and maintain an integrated master schedule for all funded BPA calls;
- establish a program-management structure with a single point of contact for the U.S. Government;
- conduct kickoff and recurring planning meetings as directed by the COR;
- track milestones, dependencies, approvals, and critical decision points;
- maintain a risk register identifying schedule, operational, safety, legal, and vendor risks;
- identify resource conflicts and mitigation measures across simultaneous activities; and
- submit regular status reports covering progress, issues, upcoming actions, and decisions required from the COR.

7.5.2 Event Concept Development

For each funded BPA call, the contractor shall:

- refine event concepts based on U.S. Government objectives;
- develop execution concepts, timelines, venue or platform options, staffing concepts, technical support concepts, and preliminary budget assumptions;
- identify major production, permitting, or public safety requirements;
- propose audience-engagement and visibility approaches; and
- provide recommendations designed to achieve the U.S. Government's desired public diplomacy effect within available funding.

7.5.3 Event Production and Execution

For live public events, the contractor shall, as required by BPA call:

- provide end-to-end support for the coordination, production and execution of the event;
- manage venue liaison and technical production support;
- manage staging, audiovisual, lighting, fabrication, installation, and teardown;
- coordinate entertainment, artistic, or presentation support when included in the order;
- coordinate audience flow, registration support, public-facing logistics, signage, and on-site operations; and
- manage subcontractors and vendors necessary for successful performance.

7.5.4 Exhibitions and Installations

For exhibitions, public displays, or artistic installations, the contractor shall, as required by BPA call:

- develop and refine exhibition layouts and visitor flow concepts;
- provide fabrication, installation, maintenance, and deinstallation support;
- coordinate shipment or local production support as applicable; and
- ensure the exhibition or installation is presented in a professional manner consistent with U.S. Government direction and approved content.

7.5.5 Digital and Social Media Support

For digital or social media BPA calls, the contractor shall, as required:

- develop campaign concepts, content calendars, asset lists, placement recommendations, and amplification plans;
- produce or coordinate digital creative assets consistent with U.S. Government-approved messaging and branding;
- manage paid digital placement support if included in the BPA call;
- monitor performance metrics and provide campaign performance reporting; and
- recommend optimization measures during the course of performance.

All digital assets, photos, videos, graphics, campaign materials, and other deliverables produced under the BPA shall be the property of the U.S. Government, with the Government retaining the right to use, reproduce, modify, and reuse such materials for official purposes.

7.5.6 Integrated Content Amplification Capability

The contractor shall be capable of integrating live events and physical activations with digital, social-media, media-placement, and branded-content amplification.

The contractor shall provide coordinated campaign planning and execution that connects public-facing events to measurable online and offline audience reach, including paid, earned, shared, and owned channels as applicable to each BPA call.

The contractor shall ensure that campaign amplification plans are synchronized with event timelines, creative approvals, launch schedules, and reporting requirements.

7.5.7 Outdoor Media and Billboard Support

For outdoor-media BPA calls, the contractor shall, as required:

- identify and recommend billboard or media placement options;
- coordinate production specifications, installation scheduling, and placement support;
- manage media vendors and placement logistics; and
- document proof of performance and timing for all placements.

7.5.8 Fireworks and Specialized Public-Safety Activities

For any BPA call involving fireworks, pyrotechnics, or similarly sensitive activities, the contractor shall:

- use only properly qualified and licensed subcontractors or vendors;
- coordinate all required permits, approvals, insurance, safety plans, and technical support required under applicable law and local practice;
- develop contingency and emergency-response coordination plans; and
- ensure no such activity proceeds without all necessary Government approvals and documented readiness.

7.5.9 Reporting, Metrics, and Closeout

For each funded BPA call, the contractor shall:

- provide post-event or post-campaign reporting;
- document outputs, attendance or reach metrics, media or digital performance, notable issues, lessons learned, and recommendations;
- reconcile deliverables against the approved order requirements; and
- provide closeout support, including final inventories or documentation if required by the Government.

7.6 Key Personnel

The contractor shall provide a list of key personnel and their qualifications.

7.6.1. Contract Manager/Project Director

Qualifications:

- Minimum 10 years of experience managing large-scale events and programs

- Proven track record of successfully delivering multiple concurrent events (concerts, festivals, sporting events)
- Experience managing multiple teams and coordinating with multiple stakeholders
- Strong financial management and budget oversight experience
- Language Requirements: Fluent in Korean; Professional English proficiency

7.6.2 Deputy Contract Manager

Qualifications:

- Minimum 7 years of experience in large-scale event management
- Strong operational and logistical coordination skills
- Ability to step into Contract Manager role as needed
- Language Requirements: Fluent in Korean; Professional English proficiency

7.6.5. Creative Director

Qualifications:

- Minimum 5 years of experience in creative direction for major events
- Portfolio demonstrating successful art exhibitions, installations, and experiential activations
- Strong network within the arts and entertainment community
- Experience curating diverse programming that appeals to broad audiences
- Language Requirements: Fluent in Korean

7.6.7. Production & Technical Director (Audio/Visual/Pyrotechnics)

Qualifications:

- Minimum 5 years of experience in event production and technical operations for major events attracting 10,000+ people
- Expertise in supervising specialized staff or subcontractors in audio engineering, lighting design, and pyrotechnics
- Knowledge of stage design, audio/visual systems, lighting, and special effects
- Knowledge of safety regulations and permitting for pyrotechnic displays
- Knowledge of safety protocols and permitting requirements for large gatherings of 10,000+ people
- Language Requirements: Fluent in Korean

This structure ensures comprehensive coverage of all technical, operational, creative, and administrative aspects needed to successfully execute diverse large-scale events, with the language capabilities necessary to work effectively in a Korean-speaking environment.

7.7 Event-Specific Ordering Modules

BPA calls may be issued for one or more of the following modules below, singularly or in combination. For the purpose of this proposal, contractor should assume a total of **10 to 15 BPA calls**, with the ability to support at least **two (2) concurrent major events** or modules at any given time:

- live public event production;
- large-scale, multi-day performance or concert support;
- sporting event;
- fashion show;
- outdoor festival support;
- pop-up installation support;
- outdoor art installation support;
- fireworks or pyrotechnic support;
- exhibition or installation support;
- digital or social media campaign support;
- billboard or outdoor media placement support;
- sponsorship visibility materials;
- promotional asset development;
- public engagement activation support; and
- post-event reporting and analytics.

Each BPA call shall specify the required services, deliverables, schedule, acceptance criteria, and funding for that order.

Acceptable performance shall be measured against the following thresholds. Failure to meet these standards may result in corrective action.

Performance Objective	Performance Standard/Threshold
Timely Deliverables	100% of deliverables (schedules, plans, reports) submitted by the due date specified in the BPA call.
Technical Quality	Accurate and professional work products with no more than one revision required for minor errors.

Event Execution	Events are executed consistent with approved plans; no more than one valid customer complaint per major event activity.
Risk Mitigation	Proactive identification of risks in monthly registers; mitigation plans implemented immediately upon COR approval.
Subcontractor Control	The contractor maintains 100% responsibility for subcontractor performance; no work proceeds without verified permits/insurance.

7.7 BPA Call Deliverables

The contractor shall provide deliverables as specified in each BPA call. Typical deliverables may include:

Deliverable	Description	Specific Requirements
Kickoff Agenda and Meeting Summary	Documentation for the initial project launch and subsequent recurring planning meetings.	Must include a formal agenda sent prior to meetings and a detailed summary of action items and decisions.
Program Management Plan	A comprehensive strategy establishing the management structure for the entire program.	Must identify a single point of contact and outline procedures for oversight of all funded BPA calls.
Integrated Master Schedule	A living document tracking the timeline for all concurrent or	Must track milestones, dependencies, and critical

	sequential program activities.	decision points across simultaneous BPA calls.
Staffing and Resource Plan	A plan detailing the management depth and labor required to support the event portfolio.	Must identify surge capacity, backup personnel, and escalation procedures to prevent mission risk.
Event Execution Plan	A detailed operational roadmap for the successful delivery of a specific public-facing event.	Must include audience flow, registration support, on-site operations, and logistical coordination.
Venue and Vendor Coordination Plan	A plan for activating Seoul-based venues and managing specialized subcontractors.	Must describe venue constraints, lead times, and management of vendors like stage or lighting crews.
Creative Concepts and Draft Assets	Refined event concepts and branding materials developed based on government objectives.	Must include execution concepts, visibility approaches, and draft digital/physical branding assets.
Technical Production Plan	A detailed plan for the technical execution of live events or high-attendance activations.	Must cover staging, audiovisual, lighting, and fabrication requirements for major event elements.
Safety and Contingency Plan	A framework for managing operational risks and ensuring public safety during events.	Must include emergency-response coordination and risk mitigation for sensitive activities like fireworks.

Digital Campaign Plan	A strategy for social media and online engagement associated with BPA calls.	Must include content calendars, amplification plans, and asset lists aligned with government messaging.
Media Placement Documentation	Records of billboards, outdoor media, or other paid placement activities.	Must provide proof of performance, placement timing, and production specification documentation.
Recurring Status Reports	Regular updates on program progress and upcoming critical actions.	Must cover current issues, upcoming milestones, and specific decisions required from the U.S. Government.
On-site Run-of-Show Documents	The granular, minute-by-minute schedule for live performance and event execution.	Must coordinate entertainment, artistic presentations, and technical cues during the live event.
Post-Event Report	A formal assessment following the completion of a specific event or campaign.	Must document attendance reach metrics, notable issues, lessons learned, and performance recommendations.
Final Closeout Report	Comprehensive documentation for the final conclusion of a BPA call.	Must reconcile all deliverables against requirements and include final inventories or closeout documentation.

The U.S. Government will specify due dates, format requirements, and acceptance criteria in each BPA call.

7.8 Government-Furnished Information and Approvals

The Government may provide mission objectives, branding guidance, approved messaging, event parameters, venue preferences, and points of contact necessary for performance.

The Government retains sole authority for final approval of messaging, branding, content, sponsorship recognition, policy positions, and official public-facing materials. The contractor shall not release public materials, finalize branding, or commit the Government to any external arrangement without written Government approval.

Only the contracting officer may authorize changes affecting BPA scope, schedule, or price.

7.9 Security, Safety, Legal, and Regulatory Compliance

The contractor shall comply with all applicable contract terms and all applicable local legal, permitting, insurance, labor, venue, safety, and regulatory requirements associated with performance in the Republic of Korea.

The contractor shall coordinate with the Government regarding security-sensitive aspects of public events and comply with Government direction concerning access, safety, emergency planning, and site-specific restrictions.

The contractor shall ensure that all subcontractors and vendors performing sensitive or specialized work are appropriately qualified for the assigned task.

7.10 Funding and Order Authorization

No work shall begin on any BPA call unless the contracting officer has issued a written order or written authorization identifying the funded effort.

The contractor shall not incur costs, begin performance, or rely on informal direction for unfunded work. Any change in scope, schedule, or price must be authorized in writing by the contracting officer.

7.11 Performance Standards

Acceptable performance shall mean that the contractor:

- meets milestones and delivery dates;
- provides accurate and professional work products;

- maintains effective subcontractor and vendor control;
- executes simultaneous and sequential events consistent with approved plans;
- maintains the preexisting integrated ecosystem, activation access, minimum corporate experience, and proven local execution capability;
- promptly identifies risks and mitigation measures;
- maintains required documentation; and
- delivers complete post-event reporting and closeout materials.

7.12 Quality Assurance

The contractor shall maintain a quality-control system sufficient to ensure that all deliverables and services meet contract and BPA call requirements. Internal review procedures shall address:

- schedules,
- creative products,
- production planning,
- vendor management,
- safety readiness,
- concurrent-event execution,
- approval tracking, and
- final deliverables.

7.13 Exclusions / Government-Reserved Functions

The contractor shall not:

- make final decisions regarding sponsor acceptance or rejection;
- determine the allocation, obligation, or reprogramming of U.S. Government funds;
- approve final messaging, policy content, or official branding;
- represent itself as authorized to speak or act on behalf of the U.S. Government except as expressly directed for logistical coordination;
- make commitments binding the U.S. Government to third parties;
- authorize changes in scope, price, schedule, or performance; or
- perform inherently governmental functions.

All final determinations regarding official policy, sponsor recognition, content approval, event approval, and contractual direction remain reserved to Government officials.

SECTION II - CLAUSES FOR BLANKET PURCHASE AGREEMENTS

FAR 52.252-2 Clauses Incorporated by Reference (Feb 1998)

This agreement incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at: www.acquisition.gov.

The following clauses are incorporated by reference:

FAR 52.203-6, Restrictions on Subcontractor Sales to the Government Alternate I (Nov 2021)

FAR 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021)

FAR 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023)

FAR 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)

FAR 52.204-9, Personal Identity Verification of Contractor Personnel (Jan 2011)

FAR 52.204-91, Contractor Identification (Sep 2025)

FAR 52.209-6, Protecting the Government's Interest when Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded (Jan 2025) (RFO DEVIATION January 30, 2026)

FAR 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (RFO DEVIATION January 30, 2026)

FAR 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015) (RFO DEVIATION January 30, 2026)

FAR 52.212-4, Terms and Conditions—Commercial Products and Commercial Services (Nov 2023) (RFO DEVIATION January 30, 2026)

FAR 52.222-50, Combating Trafficking in Persons (Oct 2025) (RFO DEVIATION January 30, 2026)

FAR 52.224-3, Privacy Training (Jan 2017)

FAR 52.225-14, Inconsistency Between English Version and Translation of Contract (Feb 2000)

FAR 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)

FAR 52.228-3, Workers' Compensation Insurance (Defense Base Act) (Jul 2014)

FAR 52.228-4, Worker's Compensation and War-Hazard Insurance Overseas (Apr 1984)

FAR 52.229-6, Taxes-Foreign Fixed-Price Contracts (Feb 2013)

FAR 52.229-12, Tax on Certain Foreign Procurements (Feb 2021)

FAR 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013)
FAR 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
FAR 52.233-3, Protest After Award (Aug 1996) (RFO DEVIATION January 30, 2026)
FAR 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004) (RFO DEVIATION January 30, 2026)
FAR 52.236-13, Accident Prevention, Alternate I (RFO DEVIATION January 30, 2026)
FAR 52.237-3, Continuity of Services (Jan 1991)
FAR 52.240-91, Security Prohibitions and Exclusions (RFO DEVIATION January 30, 2026)
FAR 52.242-15, Stop-Work Order (Aug 1989)
FAR 52.240-93, Basic Safeguarding of Covered Contractor Information Systems (RFO DEVIATION January 30, 2026)
FAR 52.252-6, Authorized Deviations in Clauses (Nov 2020)
DOSAR 652.229-70¹, Excise Tax Exemption Statement for Contractors Within the United States (Jul 1988)
DOSAR 652.229-71, Personal Property Deposition at Posts Abroad (Aug 1999)
DOSAR 652.232-70, Payment Schedule and Invoice Submission (Fixed-Price) (Aug 1999)
DOSAR 652.236-70 Additional Safety Measures (Oct 2017)
DOSAR 652.242-73, Authorization and Performance (Aug 1999)
DOSAR 652.243-70, Notices (Aug 1999)
DOSAR 652.237-72, Observance of Legal Holidays and Administrative Leave (Feb 2015)

The following clause is provided in full text:

DOSAM 652.222-800 Recruitment of Third Country Nationals for Performance on Department of State Contracts

1. Where contracts exceeding the Simplified Acquisition Threshold will require the recruitment of Third Country Nationals (TCNs), the offeror is required to submit a Recruitment Plan as part of its proposal. Offerors providing employer furnished

¹ This clause applies to U.S.-based companies only.

housing are required to submit a Housing Plan. All plans are assessed on a pass/fail basis.

2. Recruitment Plans must:

- a. State the anticipated number of workers to be recruited, the skills they are expected to have, and the country or countries from which the contractor intends to recruit them.
- b. Explain how the contractor intends to attract candidates and the recruitment strategy including the recruiter.
- c. State in the offer that the recruited employee will not be charged recruitment fees as defined in FAR 22.1702 and FAR 52.22-50. The contractor or employer pays the recruitment fees for the worker if recruited by the contractor or subcontractor to work specifically on Department of State contracts.
- d. Recruitment fees included by the prime contractor in the contract price must be allowable by country law, allocable to the contract based on benefit to the program, and reasonable based on what a prudent businessperson would pay for similar expenses and charges. The reasonableness of recruitment fees should be assessed based on the reasonableness of the individual components.
- e. State in the offer that the contractor's recruitment practices comply with recruiting nation and host country labor laws.
- f. State in the offer that the contractor has read and understands the requirements of FAR 52.222-50 Combating Trafficking in Persons.
- g. Contractor will advise the Contracting Officer of any changes to the Recruitment Plan during performance.

3. The offeror will submit a Housing Plan if it intends to provide employer furnished housing for TCNs. The Housing Plan must describe the location and description of the proposed housing. Contractors must state in their offer that housing meets host country housing and safety standards and local codes.

Contractor shall comply with any Temporary Labor Camp standards contained in their contract. In contracts without a Temporary Labor Camp standard, a minimum of 70 square feet per employee must be allocated if an employee is housed individually; if housed together, a minimum of 50 square feet per employee must be allocated unless waived by the Contracting Officer. Contractor shall submit proposed changes to their Housing Plan to the Contracting Officer for approval.

4. Department of State contractor and subcontractors will prevent human trafficking and treat employees with respect and dignity by taking the following actions:

- a. Contractor may not destroy, conceal, confiscate, or otherwise deny access to an employee's identity documents, passports, or immigration documents. Contractors and subcontractors are reminded of the prohibition contained in Title 18, United States Code, Section 1592, against knowingly destroying, concealing, removing, confiscating, or possessing any actual or purported passport or other immigration document to prevent or restrict the person's liberty to move or travel in order to maintain the services of that person, when the person is or has been a victim of a severe form of trafficking in persons. Contractor must be familiar with any local labor law restrictions on withholding employee identification documentation.
- b. Contractor shall provide employees with signed copies of the/their employment contracts that are in a language the worker understands and define the terms of employment, compensation including salary, overtime rates, allowances, salary increases, job description, description of any employer provided housing, benefits including leave accrual, and information on whether hazardous working conditions are anticipated. Contracts must be provided prior to employee departure from their countries of origin. Fraudulent recruiting practices, including deliberately misleading information, will be considered a material breach of this contract.
- c. Contractor shall provide all employees with the Department's "Know Your Rights" poster and document that employees have been briefed on the contents of the poster. The English language version is available at posters and accompanying directions or from the Contracting Officer.
- d. Contractor shall display posters in worker housing advising employees in English and the dominant language of the TCNs being housed of the requirement to report violations of Trafficking in Persons to the company and the company's obligation to report to the Contracting Officer. The poster shall also indicate that reports can also be submitted to the Office of the Inspector General (OIG) Hotline, StateOIG.gov/Hotline at 202-647-3320 or 1-800-409-9926 or via email at WPEAombuds@stateoig.gov.
- e. Contractor shall brief employees on the requirements of the FAR 52.222-50 Combating Trafficking in Persons including the requirements against procuring commercial sex even in countries where it is legal and shall provide a copy of the briefing to the Contracting Officer's Representative.
- f. Contractor and subcontractors shall comply with sending and receiving nation laws regarding transit, entry, exit, visas, and work permits. Contractors are responsible for repatriation of workers who have traveled from other countries for contract performance except an employee legally

permitted to remain in the country of work and who chooses to do so; including an employee who is a victim of trafficking seeking victim services and/or legal redress in the country of employment and/or is a witness in a trafficking-related enforcement action.

- g. Contractor shall monitor subcontractor compliance at all tiers. This includes verification that subcontractors are aware of, and understand, the requirements of FAR 52.222-50 Combating Trafficking in Persons and this clause. Contractors specifically agree to allow U.S. Government personnel access to contractor and subcontractor personnel, records, and housing for audit of compliance with the requirements of this clause.
- h. The contractor agrees to include FAR Clause 52.222-50 Combating Trafficking in Persons in all subcontracts over the simplified acquisition threshold involving recruitment of third country nationals for subcontractor performance.

5. For contracts or subcontracts with performance overseas valued at \$550,000 or more, other than those commercially available off-the-shelf items, offerors will certify with the submission of their proposal and annually thereafter that the contractor and subcontractors have a compliance plan in place appropriate to the size and nature of the program to prevent human trafficking and to comply with the provisions of this clause. The certification will confirm that, to the best of its knowledge and belief of the signatory, neither the prime nor its agents nor subcontractor have engaged in any trafficking related activities, including the procurement of a commercial sex act during the period of the contract, the use of forced labor in the performance of the contract, acts that support or facilitate trafficking in persons such as destroying or confiscating employees' documents or failing to provide return transportation, soliciting employees by use of fraud or charging recruitment fees or providing sub-standard housing described in section 106(g) of the Trafficking Victims Protection Act (TVPA) or the prohibitions of this clause. The certification will also confirm that if any violations have been found, the contractor has taken the appropriate remedial and referral actions.

6. Contractors and subcontractors can find a model FAR compliance plan, a sample code of conduct, a supplier/subcontractor self-assessment questionnaire, and criteria to select and monitor labor recruiters among other tools on the Responsible Sourcing Tool website. The Responsible Sourcing Tool is designed to assist Federal contractors, procurement officials, and other stakeholders in identifying human trafficking or trafficking-related activities in their supply chains and developing effective management systems to prevent and address these issues. Beyond the due diligence tools, the site enables federal contractors, acquisition

officials, and other entities to visualize human trafficking risks by location, industry sector, and commodity.

(End of clause)

DOSAR 652.242-70 Contracting Officer's Representative (COR) (Aug 1999)

(a) The Contracting Officer may designate in writing one or more Government employees, by name or position title, to take action for the Contracting Officer under this agreement. Each designee shall be identified as a Contracting Officer's Representative (COR). Such designation(s) shall specify the scope and limitations of the authority so delegated; provided, that the designee shall not change the terms or conditions of the agreement, unless the COR is a warranted Contracting Officer and this authority is delegated in the designation.

(b) The COR for this agreement *will be designated upon award*.

(End of clause)

END OF SCHEDULE AND CLAUSES